

After nine years of controversial proceedings, a high-profile case finally comes to a close

■ By Mihir Srivastava

Few court room trials have grabbed the public and media attention like the BMW case, so-called because the vehicle in question provided the main evidence in the sensational—and sensationalised—incident involving hotelier Sanjeev Nanda. Last week, Sanjeev, 30, son of controversial arms dealer and prominent businessman Suresh Nanda, was pronounced guilty by a Delhi court of culpable homicide not amounting to murder, for the crime of running over—in an inebriated state—three policemen and three bystanders on Lodhi Road in south Delhi in the early hours of January 10, 1999 resulting in their deaths. He was driving a brand-new BMW and though it was badly damaged, he failed to stop, instead driving to a friend's house nearby, where an attempt was made to wash off the evidence—bloodstains and bits of flesh caught on the car's body. The court delayed the sentence but Sanjeev was charged under Section 304 (2) of IPC for which he can be awarded a maximum of 10 years' imprisonment. The court found three others guilty, including the friend Rajeev Gupta, a businessman, who has been accused of conspiring to destroy evidence.

The BMW case trail is by far the most controversial in recent times. It dragged on for nine years, dogged by allegations of money power with witnesses turning hostile at regular intervals. Indeed, the court observed at one point that: "The main witnesses are turning hostile under the blatant influence of money." The testimony of Sunil Kulkarni, a key but questionable eye-witness, was crucial. He played a sensational role, being part of a sting operation carried out by a news channel which exposed an unethical connivance between the defence and prosecution lawyers, R.K. Anand and I.U. Khan respectively. This prompted the Delhi High Court, after hearing the matter for 15 months, to conclude that the two were guilty of "obstructing the administration of justice" for which they were barred from practising for four months. Anand is a top Delhi

DRIVING THE POINT HOME



INDIAN LAW

 Driving after consuming alcohol (30 mg per 100 ml) is punishable. Penalty for first offence: jail for up to six months or fine of Rs 2,000 or both; for second, if committed within three years: jail for up to two years or Rs 3,000 fine or both.

US LAW

 Laws pertaining to drunken driving in the US differ from state to state. The punishment can range from a strict prison term to community service to permanent suspension of driving licence.